

HOUSE No. 1063

The Commonwealth of Massachusetts

PRESENTED BY:

David T. Vieira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the environmental protection of Joint Base Cape Cod.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>1/14/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>4/28/2025</i>

HOUSE No. 1063

By Representative Vieira of Falmouth, a petition (accompanied by bill, House, No. 1063) of David T. Vieira relative to the environmental protection of Joint Base Cape Cod. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 919 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the environmental protection of Joint Base Cape Cod.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 47 of the acts of 2002, as most recently amended by
2 section 11 of chapter 48 of the acts of 2014, is hereby further amended by striking out the
3 definitions of “Environmental performance standards” and “Joint Base Cape Cod” and inserting
4 in place the following 2 definitions:-

5 "Environmental performance standards", the environmental performance standards
6 included in the final environmental impact report, and any amendments thereto, regarding the
7 activities on the northern 15,000 acres of the Joint Base Cape Cod promulgated under sections 61
8 to 62H, inclusive, of chapter 30 of the General Laws and certified by the secretary of
9 environmental affairs on July 16, 2001.

"Joint Base Cape Cod" or "JBCC", approximately 22,000 acres of land owned by the commonwealth in Barnstable county established under chapter 196 of the acts of 1935, chapters 320 and 344 of the acts of 1936, chapter 5 of the acts of 1941, chapter 665 of the acts of 1955 and chapter 617 of the acts of 1956, and used primarily for military purposes.

SECTION 2. Said section 1 of said chapter 47, as so amended, is hereby further amended by inserting after the word "of", in line 18, the first time it appears, the following words:- energy and.

SECTION 3. Section 2 of said chapter 47 is hereby amended by inserting after the word "commonwealth", in line 4, the following words:- and the United States.

SECTION 4. Section 3 of said chapter 47 is hereby amended by striking out, in lines 6 and 7, the words "of the department of fisheries, wildlife and environmental law enforcement" and inserting in place thereof the following words:- within the department of fish and game.

SECTION 5. Section 4 of said chapter 47 is hereby amended by inserting after the word "of", in line 1, the following words:- energy and.

SECTION 6. Said section 4 of said chapter 47 is hereby further amended by striking out, in lines 3 and 4, the words "fisheries, wildlife and environmental law enforcement; the commissioner of environmental management" and inserting in place thereof the following words:- fish and game; the commissioner of conservation and recreation.

SECTION 7. Said chapter 47 is hereby amended by striking out section 6, as amended by section 12 of chapter 48 of the acts of 2014, and inserting in place thereof the following section:-

Section 6. The commission shall be assisted by 2 advisory councils, each to be appointed by the environmental management commission:

(a) a community advisory council, which shall be comprised of the following members for a 3-year term: 1 representative of each of the towns of Falmouth, Bourne, Sandwich and Mashpee; 1 family member resident of the JBCC; 2 representatives of the military; 1 representative of the Cape Cod commission; 1 representative of the Upper Cape Regional Water Supply Cooperative; 1 representative of the Wampanoag Tribe; and 5 at-large representatives. The town representatives shall be recommended by the towns' respective boards of selectmen; the family member resident of JBCC shall be recommended by the commander of the Coast Guard Base Cape Cod; the military representatives shall be recommended by the military division of the commonwealth; the Cape Cod commission representative shall be recommended by the Cape Cod commission; the Upper Cape Regional Water Supply Cooperative representative shall be recommended by the Upper Cape Regional Water Supply Cooperative; and the Wampanoag Tribe representative shall be recommended by the tribal leadership. The community advisory council shall assist the commission by providing advice on community issues related to the protection of the water supply and wildlife habitat on the reserve, and; (b) a science advisory council, which shall be comprised of the following members for a 3-year term: 5 to 9 scientists and engineers who are recognized for their expertise in the areas of public health, water protection, wildlife habitat management or land use management. The science advisory council shall assist the commission by providing scientific and technical advice relating to the protection of the drinking water supply and wildlife habitat on the reserve.

SECTION 8. The first paragraph of section 8 of said chapter 47, as amended by section 13 of said chapter 48, is hereby further amended by striking out the fourth and fifth sentences

and inserting in place thereof the following 2 sentences:- The environmental officer shall also coordinate with appropriate personnel from the department of fish and game, the department of conservation and recreation and the department of environmental protection to monitor and evaluate the environmental impact of activities conducted on and uses of the reserve. The personnel of the department of fish and game, the department of conservation and recreation and the department of environmental protection shall support and assist the commission and cooperate with the environmental officer.

SECTION 9. The third paragraph of said section 8 of said chapter 47 is hereby amended by striking out the first sentence and inserting in place thereof the following sentence:- The commission, its staff and, as determined to be necessary by the commission, personnel of the department of fish and game, the department of conservation and recreation and the department of environmental protection, shall access and inspect the reserve in order to monitor, oversee, evaluate and report to the commission on the environmental impact of military training and all other activities.

SECTION 10. Section 9 of said chapter 47 is hereby amended by inserting after the word “of”, in line 18, the following words:- energy and.

SECTION 11. Section 10 of said chapter 47 is hereby amended by inserting after the word “of”, in line 30, the following words:- energy and.

SECTION 12. Section 12 of said chapter 47 is hereby amended by striking out, in lines 3 and 4, the words “fisheries, wildlife and environmental law enforcement, the department of environmental management” and inserting in place thereof the following words:- fish and game, the department of conservation and recreation.